Staff Report to City Council

FOR THE JULY 22, 2026 REGULAR COUNCIL MEETING

From: Conor Harkins, City Attorney
Prepared by: Conor Harkins, City Attorney
Subject: Adoption of Sales Tax and Resolution Submitting Measure to Voters

Budget Impact Overview:

N/A: ✓	Funded:	Un-funded:	Amount:	Fund(s):

RECOMMENDED ACTION: Adopt tax ordinance; adopt resolution submitting ordinance to voters

Summary/Background

On July 8, 2026, the City introduced an ordinance to impose a one percent transactions and use tax (a sales tax) to fund maintenance of streets, sidewalks, and other infrastructure in the public right-of-way. Section 3.06.010 designates the ordinance the Streets and Sidewalks Transactions and Use Tax Ordinance. Section 3.06.030(E) of the ordinance describes its purpose. Section 3.06.170 establishes separate fund, the Streets and Sidewalks Tax Fund for the sales tax revenue and describes how the revenue will be spent (the expenditure plan). Sections 3.06.180 and 3.06.190 provide transparency and accountability measures requested by the City Council — annual independent audits of Streets and Sidewalks Tax Fund and a Citizen Oversight Committee to report on compliance with the purpose and expenditure plan.

The Council must adopt the Streets and Sidewalks Transactions and Use Tax Ordinance by 4/5 vote before it can be submitted to voters. If the Council adopts the ordinance, it should also adopt a resolution calling an election on the ordinance. The attached resolution:

- Calls an election on the Streets and Sidewalks Transactions and Use Tax Ordinance
- Requests the County consolidate the election with the November 3, 2026 general election and directs the City Clerk, as the City's elections official, to work with the County to conduct the election
- Authorizes the City Council to submit an argument in favor of the sales tax measure
- Directs the City Attorney to prepare an impartial analysis
- Provides notice of the deadlines for the public to submit ballot arguments on the tax measure

Deadlines to submit arguments for or against the Streets and Sidewalks Transactions and Use Tax Ordinance are as follows:

Recommendation

1. Adopt sales tax ordinance
2. Adopt the resolution calling the election on the ordinance and asking the County to consolidate the election with the November general election

Fiscal Impacts

None

Attachments:

- Ordinance imposing one percent transactions and use tax

- Resolution calling election on transactions and use tax

ORDINANCE NO._____

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF COLFAX IMPOSING A ONE PERCENT TRANSACTIONS AND USE TAX FOR THE CONSTRUCTION, IMPROVEMENT, MAINTENANCE, REPAIR, AND REPLACEMENT OF STREETS, SIDEWALKS, ROADWAYS, AND OTHER PUBLIC INFRASTRUCTURE IN THE PUBLIC RIGHT-OF-WAY TO BE ADMINISTERED BY THE CALIFORNIA DEPARTMENT OF TAX AND FEE ADMINISTRATION

The City Council of the City of Colfax does ordain as follows:

Section 1. Code Addition. Chapter 3.60 is hereby added to title 3 of the Colfax Municipal Code to read as follows:

3.60.010 – Title. This ordinance shall be known as the Streets and Sidewalks Transactions and Use Tax Ordinance. The city of Colfax hereinafter shall be called "City." This ordinance shall be applicable in the incorporated territory of the City.

3.06.020 – Operative Date "Operative Date" means the first day of the first calendar quarter commencing more than 110 days after the adoption of this ordinance. For purposes of Revenue and Taxation Code section 7265, this ordinance shall be considered adopted on the date of the election in which it is approved by the qualified voters of the City.

3.06.030 – Purpose. This ordinance is adopted to achieve the following, among other purposes, and directs that the provisions hereof be interpreted in order to accomplish those purposes:

A. To impose a retail transactions and use tax in accordance with the provisions of Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code and Section 7285.91 of Part 1.7 of Division 2 which authorizes the City to adopt this tax ordinance which shall be operative if two-thirds of the electors voting on the measure vote to approve the imposition of the tax at an election called for that purpose.

B. To adopt a retail transactions and use tax ordinance that incorporates provisions identical to those of the Sales and Use Tax Law of the State of California insofar as those provisions are not inconsistent with the requirements and limitations contained in Part 1.6 of Division 2 of the Revenue and Taxation Code.

C. To adopt a retail transactions and use tax ordinance that imposes a tax and provides a measure therefore that can be administered and collected by the California Department of Tax and Fee Administration in a manner that adapts itself as fully as practicable to, and requires the least possible deviation from, the existing statutory and administrative procedures followed by the California Department of Tax and Fee Administration in administering and collecting the California State Sales and Use Taxes.

D. To adopt a retail transactions and use tax ordinance that can be administered in a manner that will be, to the greatest degree possible, consistent with the provisions of Part 1.6 of Division 2 of the Revenue and Taxation Code, minimize the cost of collecting the transactions

and use taxes, and at the same time, minimize the burden of record keeping upon persons subject to taxation under the provisions of this ordinance.

E. To provide transactions and use tax revenue to fund construction, improvement, maintenance, repair, and replacement of streets, sidewalks, roadways, and other public infrastructure within the public right-of-way, and for implementation and administration of the ordinance.

3.06.040 – Contract with State. Prior to the operative date, the City shall contract with the California Department of Tax and Fee Administration to perform all functions incident to the administration and operation of this transactions and use tax ordinance; provided, that if the City shall not have contracted with the California Department of Tax and Fee Administration prior to the operative date, it shall nevertheless so contract and in such a case the operative date shall be the first day of the first calendar quarter following the execution of such a contract.

3.06.050 – Transactions Tax Rate. For the privilege of selling tangible personal property at retail, a tax is hereby imposed upon all retailers in the incorporated territory of the City at the rate of 1% (one percent) of the gross receipts of any retailer from the sale of all tangible personal property sold at retail in said territory on and after the operative date of this ordinance.

3.06.060 – Place of Sale. For the purposes of this ordinance, all retail sales are consummated at the place of business of the retailer unless the tangible personal property sold is delivered by the retailer or his agent to an out-of-state destination or to a common carrier for delivery to an out-of-state destination. The gross receipts from such sales shall include delivery charges, when such charges are subject to the state sales and use tax, regardless of the place to which delivery is made. In the event a retailer has no permanent place of business in the State or has more than one place of business, the place or places at which the retail sales are consummated shall be determined under rules and regulations to be prescribed and adopted by the California Department of Tax and Fee Administration.

3.06.070 – Use Tax Rate. An excise tax is hereby imposed on the storage, use or other consumption in the City of tangible personal property purchased from any retailer on and after the operative date of this ordinance for storage, use or other consumption in said territory at the rate of 1% of the sales price of the property. The sales price shall include delivery charges when such charges are subject to state sales or use tax regardless of the place to which delivery is made.

3.06.080 – Adoption of Provisions of State Law. Except as otherwise provided in this ordinance and except insofar as they are inconsistent with the provisions of Part 1.6 of Division 2 of the Revenue and Taxation Code, all of the provisions of Part 1 (commencing with Section 6001) of Division 2 of the Revenue and Taxation Code are hereby adopted and made a part of this ordinance as though fully set forth herein.

3.06.090. Limitations on Adoption of State Law and Collection of Use Taxes. In adopting the provisions of Part 1 of Division 2 of the Revenue and Taxation Code:

A. Wherever the State of California is named or referred to as the taxing agency, the name of this City shall be substituted therefor. However, the substitution shall not be made when:

1. The word "State" is used as a part of the title of the State Controller, State Treasurer, State Treasury, or the Constitution of the State of California;

2. The result of that substitution would require action to be taken by or against this City or any agency, officer, or employee thereof rather than by or against the California Department of Tax and Fee Administration, in performing the functions incident to the administration or operation of this Ordinance.

3. In those sections, including, but not necessarily limited to sections referring to the exterior boundaries of the State of California, where the result of the substitution would be to:

a. Provide an exemption from this tax with respect to certain sales, storage, use or other consumption of tangible personal property which would not otherwise be exempt from this tax while such sales, storage, use or other consumption remain subject to tax by the State under the provisions of Part 1 of Division 2 of the Revenue and Taxation Code, or;

b. Impose this tax with respect to certain sales, storage, use or other consumption of tangible personal property which would not be subject to tax by the state under the said provision of that code.

4. In Sections 6701, 6702 (except in the last sentence thereof), 6711, 6715, 6737, 6797 or 6828 of the Revenue and Taxation Code.

B. The word "City" shall be substituted for the word "State" in the phrase "retailer engaged in business in this State" in Section 6203 and in the definition of that phrase in Section 6203.

1. "A retailer engaged in business in the District" shall also include any retailer that, in the preceding calendar year or the current calendar year, has total combined sales of tangible personal property in this state or for delivery in the State by the retailer and all persons related to the retailer that exceeds five hundred thousand dollars ($500,000). For purposes of this section, a person is related to another person if both persons are related to each other pursuant to Section 267(b) of Title 26 of the United States Code and the regulations thereunder.

3.06.100 – Permit Not Required. If a seller's permit has been issued to a retailer under Section 6067 of the Revenue and Taxation Code, an additional transactor's permit shall not be required by this ordinance.

3.06.110 – Exemptions and Exclusions.

A. There shall be excluded from the measure of the transactions tax and the use tax the amount of any sales tax or use tax imposed by the State of California or by any city, city and county, or county pursuant to the Bradley-Burns Uniform Local Sales and Use Tax Law or the amount of any state-administered transactions or use tax.

B. There are exempted from the computation of the amount of transactions tax the gross receipts from:

1. Sales of tangible personal property, other than fuel or petroleum products, to operators of aircraft to be used or consumed principally outside the county in which the sale is made and directly and exclusively in the use of such aircraft as common carriers of persons or property under the authority of the laws of this State, the United States, or any foreign government.

2. Sales of property to be used outside the City which is shipped to a point outside the City, pursuant to the contract of sale, by delivery to such point by the retailer or his agent, or by delivery by the retailer to a carrier for shipment to a consignee at such point. For the purposes of this paragraph, delivery to a point outside the City shall be satisfied:

a. With respect to vehicles (other than commercial vehicles) subject to registration pursuant to Chapter 1 (commencing with Section 4000) of Division 3 of the Vehicle Code, aircraft licensed in compliance with Section 21411 of the Public Utilities Code, and undocumented vessels registered under Division 3.5 (commencing with Section 9840) of the Vehicle Code by registration to an out-of-City address and by a declaration under penalty of perjury, signed by the buyer, stating that such address is, in fact, his or her principal place of residence; and

b. With respect to commercial vehicles, by registration to a place of business out-of-City and declaration under penalty of perjury, signed by the buyer, that the vehicle will be operated from that address.

3. The sale of tangible personal property if the seller is obligated to furnish the property for a fixed price pursuant to a contract entered into prior to the operative date of this ordinance.

4. A lease of tangible personal property which is a continuing sale of such property, for any period of time for which the lessor is obligated to lease the property for an amount fixed by the lease prior to the operative date of this ordinance.

5. For the purposes of subparagraphs (3) and (4) of this section, the sale or lease of tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

C. There are exempted from the use tax imposed by this ordinance, the storage, use or other consumption in this City of tangible personal property:

1. The gross receipts from the sale of which have been subject to a transactions tax under any state-administered transactions and use tax ordinance.

2. Other than fuel or petroleum products purchased by operators of aircraft and used or consumed by such operators directly and exclusively in the use of such aircraft as common carriers of persons or property for hire or compensation under a certificate of public convenience and necessity issued pursuant to the laws of this State, the United States, or any

foreign government. This exemption is in addition to the exemptions provided in Sections 6366 and 6366.1 of the Revenue and Taxation Code of the State of California.

3. If the purchaser is obligated to purchase the property for a fixed price pursuant to a contract entered into prior to the operative date of this ordinance.

4. If the possession of, or the exercise of any right or power over, the tangible personal property arises under a lease which is a continuing purchase of such property for any period of time for which the lessee is obligated to lease the property for an amount fixed by a lease prior to the operative date of this ordinance.

5. For the purposes of subparagraphs (3) and (4) of this section, storage, use, or other consumption, or possession of, or exercise of any right or power over, tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

6. Except as provided in subparagraph (7), a retailer engaged in business in the City shall not be required to collect use tax from the purchaser of tangible personal property, unless the retailer ships or delivers the property into the City or participates within the City in making the sale of the property, including, but not limited to, soliciting or receiving the order, either directly or indirectly, at a place of business of the retailer in the City or through any representative, agent, canvasser, solicitor, subsidiary, or person in the City under the authority of the retailer.

7. "A retailer engaged in business in the City" shall also include any retailer of any of the following: vehicles subject to registration pursuant to Chapter 1 (commencing with Section 4000) of Division 3 of the Vehicle Code, aircraft licensed in compliance with Section 21411 of the Public Utilities Code, or undocumented vessels registered under Division 3.5 (commencing with Section 9840) of the Vehicle Code. That retailer shall be required to collect use tax from any purchaser who registers or licenses the vehicle, vessel, or aircraft at an address in the City.

D. Any person subject to use tax under this ordinance may credit against that tax any transactions tax or reimbursement for transactions tax paid to a district imposing, or retailer liable for a transactions tax pursuant to Part 1.6 of Division 2 of the Revenue and Taxation Code with respect to the sale to the person of the property the storage, use or other consumption of which is subject to the use tax.

3.06.120 – Amendments. All amendments subsequent to the effective date of this ordinance to Part 1 of Division 2 of the Revenue and Taxation Code relating to sales and use taxes and which are not inconsistent with Part 1.6 and Part 1.7 of Division 2 of the Revenue and Taxation Code, and all amendments to Part 1.6 and Part 1.7 of Division 2 of the Revenue and Taxation Code, shall automatically become a part of this ordinance, provided however, that no such amendment shall operate so as to affect the rate of tax imposed by this ordinance.

3.06.130 – Enjoining Collection Forbidden. No injunction or writ of mandate or other legal or equitable process shall issue in any suit, action or proceeding in any court against the State or the City, or against any officer of the State or the City, to prevent or enjoin the collection under this ordinance, or Part 1.6 of Division 2 of the Revenue and Taxation Code, of any tax or any amount of tax required to be collected.

3.06.140 – Severability. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the remainder of the ordinance and the application of such provision to other persons or circumstances shall not be affected thereby.

3.06.150 – Effective Date. This ordinance relates to the levying and collecting of the City transactions and use taxes and shall take effect immediately.

3.06.160 – Termination Date. The authority to levy the tax imposed by this ordinance shall be in effect until ended by voters. .

3.06.170 – Expenditure Plan.

A. All proceeds of the streets and sidewalks tax imposed by this chapter shall be accounted for and paid into a special fund designated the Streets and Sidewalks Tax Fund for construction, installation, maintenance, repair, reconstruction, replacement, and improvement of streets, sidewalks, curbs, gutters, roadways, and other public infrastructure and improvements located within or appurtenant to the public right-of-way. Such maintenance and improvement includes pavement sealing and overlays; drainage repair and erosion control; maintenance and repair of sewer mains in the right-of-way that fall within the City's responsibility; sweeping; vegetation maintenance; trash removal; repair or replacement of ADA facilities, sidewalks, curb ramps, bridges, signs, traffic signals, streetlights, and other appurtenances associated with the public right-of-way; widening of shoulders for safety and the inclusion of bicycle and pedestrian facilities within the right-of-way; and such other treatments as are necessary to provide for ongoing public use of the public right-of-way and the infrastructure within it.

B. Eligible construction, installation, and maintenance expenses include planning; design; right-of-way and easement acquisition; environmental review; permitting; payment to consultants, construction contractors, and other third-party construction and maintenance entities; payment for planning, design, right-of-way acquisition, and environmental professionals; purchases of equipment, material, and supplies; reimbursement of direct City staff expenses; expenses associated with land acquisition or easements necessary for the construction or maintenance of the public infrastructure described herein; and other ancillary expenses related to the design, environmental clearance, permitting, construction, or maintenance of the public right-of-way and the infrastructure within it.

C. The City is hereby authorized to incur indebtedness in the form of bonds, notes, contractual obligations, or other evidences of indebtedness authorized by law to finance or refinance the costs of the construction, installation, maintenance, repair, reconstruction, replacement, and improvement authorized by this Expenditure Plan, and to pay any and all costs of issuing or incurring such indebtedness, to fund reserve funds, capitalized interest, costs of credit enhancement, costs of interest rate hedging arrangements, or any other financing costs

associated with such indebtedness. Such indebtedness shall be solely payable from, and may be secured by a pledge and lien on, the proceeds of the tax levied and imposed hereunder.

D. Proceeds from the from the tax imposed by this chapter may be also be used to fund implementation of this chapter, including the annual audit of the Streets and Sidewalks Tax Fund and any stipends the City Council may approve for the Citizen Oversight Committee.

3.06.180 – Audit and Review. The proceeds of the tax imposed by this ordinance, as well as the expenditure thereof, shall be audited independently each year. The results of the audit shall be presented to the Citizen Oversight Committee at a meeting that is open to the public.

3.06.190 – Citizen Oversight Committee.

A. **Establishment and Composition.**

1. There is hereby established a Citizen Oversight Committee. Within three months after the City Council declares the result of an election approving this ordinance, the City Council shall appoint the members of the committee. The Committee shall consist of three members, each of whom shall be a resident of the City of Colfax. The City Council may by resolution adopt qualifications in addition to residency (e.g., no conflicts of interest; no City employment) for committee members. Members shall serve one-year terms. The City Council shall fill vacancies for unexpired terms. The City Council has discretion to remove committee members for cause.

2. If, after making a good-faith effort to identify City residents who are willing to serve on the Citizen Oversight Committee, the City Council is unable to appoint three members or fill a vacancy on the committee, the City Council shall adopt a resolution describing its efforts to recruit committee members and appointing one of its members to serve the unfilled seat on the committee. If the City Council subsequently identifies a resident who is willing to take over a seat filled by a councilmember, the City Council shall remove a councilmember from the committee and appoint the volunteer to the seat previously filled by a councilmember before the annual review of Streets and Sidewalks Tax Fund expenditures.

B. **Duties.** The Citizen Oversight Committee shall annually review expenditures from the Streets and Sidewalks Tax Fund established under section 3.06.170(A) of this chapter, together with the annual independent audit required by section 3.06.180 of this chapter. The committee shall report to the City Council on whether expenditures conformed to the purposes of the Expenditure Plan set forth in section 3.06.170 of this chapter. The report shall be a public record and shall be presented to the City Council at a public meeting.

C. **Meetings and Records.** The Citizen Oversight Committee is a legislative body subject to the Ralph M. Brown Act (Gov. Code, § 54950 et seq.) and shall conduct its meetings and maintain its records accordingly.

D. **Advisory Role.** The Citizen Oversight Committee is advisory only. Nothing in this section authorizes the committee to direct, approve, or withhold any expenditure, and the review and reporting functions of the Committee are not a condition precedent to the expenditure of any proceeds of the tax.

E. **Effect of Noncompliance.** The failure of the City Council to establish or appoint the Citizen Oversight Committee, or the failure of the committee to meet, review, or report, shall not affect the validity of the tax imposed by this ordinance or the authority of the City to expend its proceeds.

Section 2 – Severability. If any provision of this Ordinance or the application thereof to any person or circumstance is held invalid, the remainder of the ordinance and the application **of such provision to other persons or circumstances shall not be affected thereby.**

Section 3 – Certification; Publication. Upon approval by the voters, the City Clerk shall certify the passage and adoption of this ordinance and shall cause it to be published according to law and transmitted to the California Department of Tax and Fee Administration.

The foregoing ordinance was introduced at a duly held regular meeting of the City Council of the City of Colfax on the 8th day of July 2026, and passed and adopted at a duly held regular meeting of the City Council on the ___ day of _____ 2026, by the following vote:

AYES:
NOES:
ABSTAIN:
ABSENT:

_____
Caroline McCully, Mayor

Attest:_____
Gabrielle Christakes, City Clerk

City of Colfax
City Council

Resolution № __-2026

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF COLFAX ORDERING THE SUBMISSION TO THE QUALIFIED VOTERS OF THE CITY A MEASURE TO APPROVE A LOCAL SPECIAL TRANSACTIONS AND USE TAX (SALES TAX) IN THE NOVEMBER 3, 2026, GENERAL ELECTION

WHEREAS, the City of Colfax is responsible for constructing, improving, maintaining, repairing, and replacing public streets and roadways within the city;

WHEREAS, the City's transportation infrastructure requires ongoing maintenance, repair, rehabilitation, and replacement to ensure public safety and mobility;

WHEREAS, on January 10, 2018, the City adopted its 2018 Pavement Management Program, which was revised as of June 26, 2020;

WHEREAS, the City has experienced increasing costs associated with roadway construction, maintenance, repair, and replacement, while available transportation funding sources have remained limited and unpredictable;

WHEREAS, the City has insufficient revenue to address current and future roadway maintenance needs and the growing backlog of deferred roadway maintenance projects;

WHEREAS, on May 27, 2026, the City Council adopted Resolution No. 18-2026 requesting that the general municipal election be consolidated with the statewide general election to be held on November 3, 2026, and requested assistance of the Placer County Registrar of Voters in conducting the election;

WHEREAS, on May 27, 2026, the City Council by Resolution No. 20-2026 directed the City Manager to develop a revenue measure for street and road repair, replacement, and maintenance;

WHEREAS, California Revenue and Taxation Code section 7285.91 authorizes the City to levy a one percent (1%) special transactions and use (sales) tax for the specific purpose of funding the construction, maintenance, repair, and replacement of streets, sidewalks, roadways, and any other public infrastructure located in the public right-of-way, including storm drains and sewers;

WHEREAS, in order to levy such a tax, the ordinance imposing the tax must be approved by a two-thirds vote of all members of the City Council and subsequently approved by a two-thirds vote of the qualified voters of the City voting in an election on the issue;

WHEREAS, the City Council desires to submit to the voters of the City, at the general municipal election to be held on November 3, 2026, an ordinance imposing a one percent (1%) transactions and use (sales) tax; and

WHEREAS, it is desirable that the election on the tax ordinance be consolidated with the statewide general election to be held on the same date, and that the Placer County Elections Office canvass the returns of the election and that the elections be held in all respects as if there were only one election;

NOW THEREFORE, the City Council of the City of Colfax does hereby resolve, declare, determine and order as follows:

SECTION 1. Incorporation of Recitals. The above recitals are true and correct and are incorporated herein.

SECTION 2. This resolution supersedes Resolution No. 28-2026 of the City Council of the City of Colfax calling an election on a transactions and use tax. Resolution No. 28-2026 of the City Council of the City of Colfax is hereby vacated and void.

SECTION 3. Call of Election on Tax Measure. The City Council, pursuant to its right and authority, does order submitted to the voters at the general election to be held on November 3, 2026, the following question (the "Measure"):

Colfax Streets and Sidewalks Sales Tax Shall the measure to fund construction, improvement, maintenance, repair, and replacement of streets, sidewalks, and other infrastructure within the public right-of-way, including drainage and sewers, and administration of the measure, by adopting a 1% transactions and use (sales) tax providing approximately $1,864,000 annually until ended by voters, with independent audits, public spending disclosure, and a citizen oversight committee, and all funds spent locally, be adopted?	YES NO

The vote requirement for the Measure to pass is two-thirds (66.67%) of the votes cast. The referenced ordinance is attached hereto as **Exhibit A** and is incorporated in this resolution by this reference.

SECTION 4. Consolidation with Statewide General Election. Pursuant to Elections Code section 10402, the City Council hereby requests that the Placer County Board of Supervisors consolidate the election on the Measure with the statewide general election the Registrar of Voters will administer on November 3, 2026. The City Council acknowledges and requests that the consolidated election be held and conducted in the manner prescribed in Elections Code section 10418. The ballots to be used in the election shall be in form and content as required by law.

The City Clerk is authorized and directed to work with the Placer County Registrar of Voters to procure and furnish any and all official ballots, notices, printed matter and all supplies, equipment, and paraphernalia as needed to properly and lawfully conduct the election. In all particulars not recited in this Resolution, the election shall be held and conducted as provided by law for holding municipal elections. Pursuant to Elections Code section 10002, the City will reimburse Placer County for the actual cost incurred in conducting the election upon receipt of a bill stating the amount due.

The notice of the time and place of holding the election is hereby given, and the City Clerk and Placer County Registrar of Voters are authorized to give further notice of the election, as required by law.

SECTION 5. Implementation. The City Clerk is hereby directed to file a certified copy of this Resolution with the Board of Supervisors of the County of Placer and the Registrar of Voters of the County of Placer not later than August 7, 2026. The City Clerk is further authorized and directed to perform all other acts necessary or required by law to implement this Resolution and related to the election on the Measure.

SECTION 6. Impartial Analysis. The City Attorney shall prepare an impartial analysis of the Measure showing the effect of the measure on existing law and the operating of the measure. The impartial analysis shall be filed by the date set by the City Clerk.

SECTION 7. Ballot Arguments. Members of the City Council are hereby authorized to prepare a written argument, not to exceed 300 words, in favor of the measure on behalf of the City Council, as specified in section 9282 of the Elections Code. Arguments against the measure may not exceed 300 words and must be submitted to the City Clerk in compliance with sections 9282 and 9283 of the California Elections Code by the deadline established by the City Clerk. Rebuttal arguments are authorized and may not exceed 250 words and must be submitted to the City Clerk as specified in section 9285 of the Elections Code.

Deadlines for filing arguments for and against the Measure and rebuttal arguments are as follows:

a. Printed arguments shall be titled either “Argument In Favor Of Measure” or “Argument Against Measure.” Arguments in favor of or in opposition to the Measure shall be filed with the City Clerk at 33 South Main Street, Colfax, California not later than Friday, July 31, 2026 at 5:00 p.m.

b. The primary arguments that will be submitted to voters will be available for review at Colfax City Hall or upon request to the City Clerk on Friday, August 7, 2026.

c. Printed rebuttal arguments shall be titled either "Rebuttal; Argument In Favor Of Measure” and “Rebuttal; Argument Against Measure”. Rebuttal arguments shall be filed with the City Clerk at 33 South Main Street, Colfax, California not later than Thursday, August 13, 2026 at 5:00 p.m.

d. If more than one argument for or more than one argument against the Measure is submitted, the City Clerk shall select one of the arguments in favor and one of the arguments against the measure, as set forth in Elections Code section 9287.

SECTION 8. Certification. The City Clerk shall certify passage and adoption of this resolution and its approval by the City Council and shall cause the same to be listed in the records of the City.

THE FOREGOING RESOLUTION WAS DULY AND REGULARLY ADOPTED at the Regular Meeting of the City Council of the City of Colfax held on the 8th day of July, 2026, by the following vote of the Council:

AYES:
NOES:
ABSTAIN:
ABSENT:

Caroline McCully, Mayor

ATTEST:

Gabrielle Christakes, City Clerk

DRAFT